ACT #2026-424
CA

SB5

9JG6TPB-2

By Senator Allen (Constitutional Amendment)

RFD: Education Policy

First Read: 13-Jan-26

PFD: 17-Jun-25

Enrolled, An Act,

Proposing an amendment to the Constitution of Alabama of 2022, to require local boards of education to adopt policies requiring each public K-12 school to broadcast or sanction the performance of the first stanza of The Star-Spangled Banner at least once per week during school hours.

BE IT ENACTED BY THE LEGISLATURE OF ALABAMA:

Section 1. The Legislature finds and declares the following:

(1) During the Battle of Baltimore of the War of 1812, Francis Scott Key visited the British fleet in the Chesapeake Bay on September 7, 1814, to secure the release of Dr. William Beanes, who had been captured after the British burned Washington, D.C.

(2) The release of Dr. Beanes was secured, but Key and Beanes were held by the British during the shelling of Fort McHenry, one of the forts defending Baltimore.

(3) On the morning of September 14, 1814, after the 25-hour British bombardment of Fort McHenry, Key peered through the clearing smoke to see a 42-foot by 30-foot American flag flying proudly atop the fort.

(4) He was so inspired to see the enormous flag still flying over the fort that he began penning a song, which he named The Defence of Fort McHenry, to commemorate the occasion, and he included a note that it should be sung to the

tune of the popular British melody To Anacreon in Heaven.

(5) In 1916, President Woodrow Wilson ordered that the anthem, which had been popularly renamed The Star-Spangled Banner, be played at military and naval occasions.

(6) On March 3, 1931, President Herbert Hoover signed a resolution of Congress that officially designated The Star-Spangled Banner as the National Anthem of the United States.

(7) For over 100 years, The Star-Spangled Banner has served to inspire generations of patriotic Americans, and it is imperative that students have exposure to this history and inspiration.

Section 2. The following amendment to the Constitution of Alabama of 2022, is proposed:

PROPOSED AMENDMENT

(a) Each local board of education shall adopt a policy requiring each public K-12 school under its jurisdiction to broadcast The Star-Spangled Banner during school hours, at least once per week.

(b)(1) A local board of education shall select for broadcast, pursuant to subsection (a), any recording of the first stanza of The Star-Spangled Banner that is archived within the Library of Congress and available on the Library of Congress website.

(2) A local board of education, alternatively, may adopt a policy allowing, during school hours, for the performance of the first stanza of The Star-Spangled Banner from original sheet music, archived within the Library of

Congress and available on its website, by a school-sanctioned band program, choral program, vocal group, or vocalist.

Upon ratification of this constitutional amendment, the Code Commissioner shall number and place this amendment as appropriate in the constitution omitting this instructional paragraph and may make the following nonsubstantive revisions: change capitalization, hierarchy, spelling, and punctuation for purposes of style and uniformity; correct manifest grammatical, clerical, and typographical errors; revise internal or external citations and cross-references; harmonize language; and translate effective dates.

Section 3. An election upon the proposed amendment shall be held in accordance with Sections 284 and 285 of the Constitution of Alabama of 2022, and the election laws of this state. The appropriate election official shall assign a ballot number for the proposed constitutional amendment on the election ballot and shall set forth the following description of the substance or subject matter of the proposed constitutional amendment:

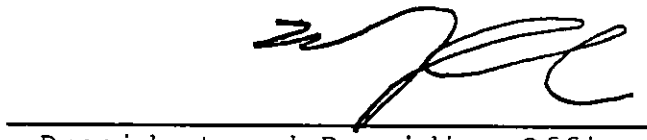
"Proposing an amendment to the Constitution of Alabama of 2022, to require local boards of education to adopt policies requiring each public K-12 school to broadcast or sanction the performance of the first stanza of The Star-Spangled Banner at least once per week during school hours.

Proposed by Act ____."

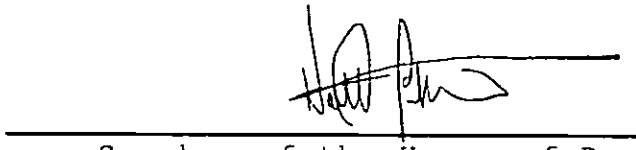
This description shall be followed by the following language:

"Yes( ) No( )."

Section 4. The proposed amendment shall become valid as a part of the Constitution of Alabama of 2022, when approved by a majority of the qualified electors voting thereon.



President and Presiding Officer of the Senate



Speaker of the House of Representatives

SB5
Senate 03-Mar-26
I hereby certify that the within Act originated in and passed the Senate.

Patrick Harris,
Secretary.

House of Representatives
Passed: 09-Apr-26

By: Senator Allen

APPROVED_____

TIME_____

_____
GOVERNOR

Alabama Secretary Of State

Act Num....: 2026-424
Bill Num...: S-5

Recv'd 04/09/26 07:26pmKCW

SPONSOR Collins

1 _____

CO-SPONSORS

2 _____ 19 _____

3 _____ 20 _____

4 _____ 21 _____

5 _____ 22 _____

6 _____ 23 _____

7 _____ 24 _____

8 _____ 25 _____

9 _____ 26 _____

10 _____ 27 _____

11 _____ 28 _____

12 _____ 29 _____

13 _____ 30 _____

14 _____ 31 _____

15 _____ 32 _____

16 _____ 33 _____

17 _____ 34 _____

18 _____ 35 _____

SENATE ACTION

DATE: 20__

RD 1 RFD

I hereby certify that the notice & proof is attached to the Bill, SB _____ as required in the General Acts of Alabama, 1975 Act No. 919.

PATRICK HARRIS,
Secretary

This Bill was referred to the Standing Committee of the Senate on ED Policy

and was acted upon by such Committee in session and is by order of the Committee returned therefrom with a favorable report

w/amd(s) _____ w/sub _____ w/eng sub _____

yeas 6 nays 3 abstain 0

this 25 day of February, 2026

_____, Chairperson

DATE: 2-25 20 26

RF FN RD 2 CAL

I hereby certify that the Resolution as required in Section C of Act No. 81-889 was adopted and is attached to the Bill, SB S

yeas 23 nays 5 abstain 0

PATRICK HARRIS,
Secretary

DATE: 3-3-26 RD 3 at length

PASSED ☑ PASSED AS AMENDED ☐

yeas 28 nays 5 abstain 0

And was ordered sent forthwith to the House.

PATRICK HARRIS,
Secretary

FURTHER SENATE ACTION (OVER)

HOUSE ACTION CA

DATE: 3 5 2026

RD 1 RFD ED

REPORT OF STANDING COMMITTEE

This bill having been referred by the House to its standing committee on

Education Policy

was acted upon by such Committee in session, and returned therefrom to the House with the recommendation that it be Passed,

w/amd(s) _____ w/sub _____

this 17th day of March, 20 26.

Alan Collins, Chairperson

DATE: 3.17 20 26

RF (CA) RD 2 CAL

DATE: 20__

RE-REFERRED ☐ RE-COMMITTED ☐

COMMITTEE _____

I hereby certify that the Resolution as required in Section C of Act No. 81-889 was adopted and is attached to the Bill, SB S.

YEAS _____ NAYS _____

JOHN TREADWELL,
Clerk

FURTHER HOUSE ACTION (OVER)